



Questionnaire: Peter Warren - Wakeling Automotive

MN-90028

Deadline to respond: 21 July 2026

The Australian Competition and Consumer Commission (**ACCC**) is currently assessing Peter Warren Automotive Holdings Ltd's (**Peter Warren**) proposed acquisition of:

- 100% of the shares of Paul Wakeling Motor Group Pty Ltd;
- 100% of the shares of Wollongong City Motors Pty Ltd; and
- the business and trading net assets of Hurrikayne Pty Ltd, relating to the Moss Vale Motor Group

from Wakeling Automotive Group (**Wakeling Automotive**) (the **Acquisition**), as part of which Peter Warren will acquire 30 new and used car dealerships in New South Wales.

For further information about the ACCC's assessment of the Acquisition, see the ACCC's [Acquisitions Register](#).

On 13 July 2026, Peter Warren made a remedy offer to the ACCC that it would provide a court-enforceable undertaking pursuant to s87B of the *Competition and Consumer Act 2010* (the **Act**), which would require Peter Warren to divest eight dealerships across two locations in the Macarthur region to an ACCC-approved purchaser (the **Remedy Offer**).

A summary of the Remedy Offer and a copy of Peter Warren's proposed s87B undertaking is available on the ACCC's [Acquisitions Register](#).

The ACCC is assessing the Remedy Offer and the impact of the Acquisition on competition and is seeking your views.

The ACCC invites you to provide submissions or information in response to the questions below by **21 July 2026** via email to mergers@accc.gov.au with a copy to mergersru@accc.gov.au, with the title *Submission re: Peter Warren - Wakeling Automotive*. The ACCC must complete its assessment within strict statutory timelines which also impacts the time available for consultation.

On 5 March 2026, the ACCC issued a questionnaire in relation to the Acquisition as part of its assessment of notification MN-30002. If you provided submissions previously to the ACCC in response to that questionnaire, you do not need to resubmit it unless you have additional information or updates you would like to provide to the ACCC. You may wish to comment in relation to the s87B undertaking remedy Peter Warren has offered or provide details of any material

market developments since the ACCC last issued the questionnaire, and whether you consider those developments to be short or long-term in nature.

If you would prefer to speak to a member of the ACCC case team, please email mergers@accc.gov.au with a copy to mergersru@accc.gov.au, with the title *Request for call re: Peter Warren – Wakeling Automotive*. Someone from the case team will contact you to find a suitable time for a call.

Please note that:

- This request is made in accordance with section 51ABZZD(2)(a) and (c) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). This means that while the ACCC may take into account submissions or information received after the due date, it is not required to do so.
- In responding to the questions below or when providing a submission, please highlight and/or mark any confidential information and indicate why the information is confidential (as brief reasons in footnotes in your response or submission, or in a separate document such as the ACCC's [general confidentiality claims template](#)). The standard terms on which the ACCC accepts confidential information are outlined at the end of this document.

Questions

In this questionnaire:

OEM refers to the Original Equipment Manufacturer of vehicle brands operating in Australia, such as Toyota or Mitsubishi.

RRP refers to an OEM's recommended retail price.

Question for all respondents

1. Provide a brief description of your business or organisation, including any commercial relationships you have with Peter Warren or Wakeling Automotive. If you are a new car dealer, please specify any OEM agreements you have.

The Acquisition:

Questions for OEMs

2. Identify:

- a. your closest OEM competitors in the supply of new cars in Australia
- b. how your OEM brand promotes competition between new car dealerships, particularly in local areas
- c. any material developments that have occurred in 2026 that have impacted competition between OEMs in Australia.

Questions for new car dealerships

3. For any new car dealerships you operate in the Campbelltown-Narellan-Smeaton Grange area in New South Wales, specify the distances or areas your customers travel to purchase a new car. If known, please provide percentages of customers travelling 0-10km, 10-20km, 20-30km and 30-40km to purchase a new car.

If you do not operate any new car dealerships in the Campbelltown-Narellan-Smeaton Grange area, please respond to the above based on other dealerships you operate in surrounding areas, such as Sydney or the Illawarra.

4. Identify your strongest dealership competitors and specify the OEM brands that each competitor represents. As part of your response, explain what makes them strong competitors to you (e.g. price, range, proximity, service levels).

5. Specify the elements of a new car offer that are within a dealership's control, e.g., discounting off RRP, stock availability, proximity to customer. Comment on the importance of these factors in a customer's purchasing decision. If there is any difference between types of customers (i.e. fleet customers / commercial customers / novated lease customers / private consumers), please specify.

6. To what extent do dealerships offering different OEM brands compete? For example, to what extent does a Toyota dealership compete with a Mazda dealership? Please provide further information on which OEM brands are considered to be in closest competition with each other at a dealer level.

7. Describe what is involved in establishing a new car dealership site. In your response, please explain what would be required to win a new OEM agreement, what investments and/or existing assets would be required to establish a dealer site, and how long it would take.

Other issues (for all respondents)

8. Do you consider Peter Warren and Wakeling Automotive are close competitors in the Campbelltown-Narellan-Smeaton Grange area in the supply of:
- a. new car retailing; and/or
 - b. servicing and repairs?

If so, please provide the reasons why.

9. Outline any concerns you have regarding the impact of the Acquisition on competition.

The Remedy Offer:

10. Describe the extent to which Peter Warren's Remedy Offer would address any concerns you have in relation to the Acquisition.

11. The Remedy Offer requires Peter Warren to divest the Divestiture Business, being:

- Camden Valley Motors Dealership site, reconfigured to include the Kia, Mitsubishi, Isuzu Ute, RAM and Suzuki dealerships, and

- Campbelltown Mill Road Dealership site, reconfigured to include the Volkswagen, Isuzu Ute and GMSV dealerships.

Provide your view on whether the two sites and eight dealerships that Peter Warren is proposing to divest are likely to attract a suitable purchaser, and the qualities a suitable purchaser would possess.

12. Provide your view on any factors that may impact effective implementation of the Remedy Offer e.g., undertaking drafting and any third-party consents required, including the process to transfer / relocate the dealerships to the Divestiture Business sites.

13. Provide any additional information or comments you consider relevant to the ACCC's consideration of the Acquisition or Remedy Offer.

Confidentiality of responses

During the ACCC's assessment of a notified acquisition, the ACCC may receive information that is properly regarded as being confidential, and which is provided to the ACCC in confidence. The ACCC is committed to treating this information responsibly and in accordance with the law. The ACCC understands the importance of confidentiality to parties involved in a notified acquisition, as well as to third parties that provide information to the ACCC.

The standard terms on which the ACCC accepts confidential information are:

- there is no restriction on the internal use, including future use, that the ACCC may make of the confidential information consistent with the ACCC's statutory functions
- confidential information may be disclosed to the ACCC's external advisors and consultants on condition that each such advisor or consultant will be informed of the obligation to treat the information as confidential, and
- the ACCC may disclose the confidential information to other third parties if compelled by law or in accordance with section 155AAA of the Act. This includes disclosures made in the performance of official duties or functions, which include transparency requirements which are part of the merger control regime.

For further information on confidentiality, see the ACCC's [Quick guide on providing confidential information to the ACCC](#).